

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201602448	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/23/2016 9:10 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/23/2017	Precinct: 45		
Date/Time CV Reported Wed, 03/23/2016 1:27 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/23/2016 1:27 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. DT3 Jerome Foy	4344	922360	WARRSEC		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. DT3 Raymond Mccann	4391	938976	WARRSEC		
2. DT3 Thomas Carter	01170	925036	WARRSEC		
Officer(s)	Allegation	Investigator Recommendation			
A . DT3 Jerome Foy	Abuse: Detective Jerome Foy entered and searched § 87(2)(b) in the Bronx.	A . Substantiated			

Case Summary

§ 87(2)(b) filed this complaint on March 23, 2016 with the CCRB via phone.

On March 23, 2016, at approximately 9:10 a.m., officers came to § 87(2)(b) apartment at § 87(2)(b) in the Bronx. Det. Jerome Foy, Det. Thomas Carter, and Det. Raymond McCann, assigned to Manhattan Warrant Squad, arrived at § 87(2)(b) apartment to investigate the subject of an i-card and the subject of an arrest warrant. Det. Foy, Det. Carter, and Det. McCann entered and searched the apartment to search for the subjects of the investigations (**Allegation A**). There is no video that captured this incident. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was suitable for mediation and it was offered to § 87(2)(b) during her interview. § 87(2)(b) chose to have her complaint investigated.
- The NYC Office of the Comptroller responded to a request on May 19, 2016 indicating that no notice of claim has been filed by § 87(2)(b) in regards to this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) with the CCRB (Board Review 03).
- Det. Foy has been a member of the service for 17 years and has no substantiated allegations. Det. Foy's CCRB history consists of one entry and search allegation in CCRB case 201307682 which was exonerated by the Board. In that case, officers possessed a bench warrant for a perpetrator they believed resided at the location (Board Review 04).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g)

Allegation A – Abuse of Authority: Detective Jerome Foy entered and searched § 87(2)(b) in the Bronx.

It is undisputed that officers entered and searched § 87(2)(b) on the incident date.

§ 87(2)(b) testified that Det. Foy, Det. McCann and Det. Carter arrived at her apartment looking for her cousin, § 87(2)(b) (Board Review 05). § 87(2)(b) was alone inside her apartment. Det. Foy was the primary person speaking with § 87(2)(b) during this incident. § 87(2)(b) acknowledged that § 87(2)(b) has stayed over at her apartment in the past. However, § 87(2)(b) has never lived there. Det. Foy asked § 87(2)(b) if he could look around her apartment. § 87(2)(b) did not allow the officers to come inside because the apartment was not clean. Det. Foy went on to say that he had a warrant for someone named

§ 87(2)(b) does not know anyone named § 87(2)(b) and communicated this to Det. Foy. Det. Foy again asked if he could look around her apartment. § 87(2)(b) repeated that the officers could not come inside because her apartment was not clean. Det. Foy showed § 87(2)(b) the warrant for § 87(2)(b). § 87(2)(b) attempted to shut the door to call a relative who is a probation officer. Det. Foy placed his foot in the door frame to block the door from closing. § 87(2)(b) relative told her that she had no obligation to let the detectives inside her apartment. This conversation occurred over speaker phone. Det. Foy interjected that her relative was mistaken. Det. Foy spoke with the relative on the phone. § 87(2)(b) got her phone back and her relative reiterated to her that she had no obligation to let the detectives inside. When she got off of the phone, Det. Foy told § 87(2)(b) that they were not leaving. § 87(2)(b) allowed the detectives inside because she was afraid that the situation might escalate. § 87(2)(b) felt pressured to let the detectives inside her apartment. Det. Foy, Det. Carter, and Det. McCann entered her apartment and searched the rooms and closets.

A document request to the NYPD produced an arrest warrant for § 87(2)(b) (DOB: § 87(2)(b)) (Board Review 06). The warrant was issued on § 87(2)(b) and was in regards to a summons issued on September 13, 2014. The warrant lists § 87(2)(b) as the address for § 87(2)(b). On April 20, 2016, public records searches were conducted on the Lexis and CLEAR databases (Board Review 07). These searches did not yield any results associating § 87(2)(b) with § 87(2)(b). A BADS search on May 19, 2016 did not reveal any past arrests of § 87(2)(b) in New York City (Board Review 08). Requests to the NYPD also produced two i-cards for § 87(2)(b) in which he is sought as a perpetrator (Board Review 09). One of the i-cards lists § 87(2)(b) as § 87(2)(b) address. The second i-card lists a Manhattan address. This request did not reveal any arrest warrants for § 87(2)(b).

The detectives interviewed offered the following consistent testimony about this incident (Board Review 10-12). § 87(2)(g). The detectives went to the incident location to investigate an i-card and an arrest warrant for subjects associated with § 87(2)(b). Det. Foy was responsible for these investigations. § 87(2)(b) answered the door and refused to allow the detectives to come inside to search her apartment. Det. Foy explained that they had an arrest warrant for someone at the apartment and they needed to come inside. A dialogue ensued between § 87(2)(b) and Det. Foy in which she asked many questions about the detectives' authority to enter her apartment. § 87(2)(b) called someone who is a parole officer who told her she did not have to let the detectives inside her apartment. § 87(2)(b) spoke with someone from the Manhattan Warrant Squad office over the phone about the procedures involved in the detectives entering her apartment. After she got off the phone, § 87(2)(b) allowed the officers inside her apartment. A search was conducted of the apartment and nobody was found inside.

Det. Foy testified that the investigation of § 87(2)(b) cousin, § 87(2)(b), is assigned to him (Board Review 10). There are two i-cards involving § 87(2)(b) in which he is wanted for assaulting his girlfriend. Det. Foy's investigation led him to believe that § 87(2)(b) resided at § 87(2)(b) in the Bronx. Det. Foy conducted a search of the location and found an arrest warrant for someone named § 87(2)(b) which listed the same apartment as his address. The crimes for which § 87(2)(b) and § 87(2)(b) are wanted are completely unrelated. Det. Foy did not do any work to determine that this address belonged to § 87(2)(b) before the incident date in this complaint. Aside from finding the address on the arrest warrant, Det. Foy did not have any other reason to believe that

§ 87(2)(b) § 87(2)(b) would be inside the apartment at § 87(2)(b). During his interaction with § 87(2)(b) she told him two or three times that she did not want the detectives to come inside her apartment. Det. Foy explained to § 87(2)(b) that he had the authority to come inside her apartment without her permission because he had an arrest warrant for § 87(2)(b) § 87(2)(b). Det. Foy showed § 87(2)(b) the warrant. Det. Foy put his foot in the doorway to stop the door from shutting because she had his paperwork when she went to make a call. After speaking over the phone with Sgt. Farrell from Manhattan Warrant Squad, § 87(2)(b) § 87(2)(b) said, “Come on. Let’s go. Let’s get it over with” and allowed the detectives inside her apartment. § 87(2)(b) demeanor changed from cordial to agitated.

In Payton v. New York, 445 U.S. 573 (1979), the Fourth Amendment was interpreted as prohibiting the warrantless and nonconsensual entry into a suspect’s home to conduct an arrest, absent exigent circumstances. Payton v. New York goes on to state that an arrest warrant “carries with it the limited authority to enter a dwelling in which the suspect lives when there is reason to believe the suspect is within” (Board Review 13).

People v. Gonzalez, 39 NY 2d 122 (1976) states that “consent to search must be an unequivocal product of an essentially free and unconstrained choice and is incompatible with official coercion and pressure” (Board Review 14).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended at **Allegation A** be closed as **Substantiated**.

Squad: 8

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date